

25STCV24097 25STCV24097

County: los-angeles

Division: Civil Law and Motion

Department: 511

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Case Number: 25STCV24097 Hearing Date: September 9, 2026 Dept: 511

Tentative Ruling

Judge Upinder S.

Kalra, Department 511

HEARING DATE: September
9, 2026

CASE NAME: David

Kay v. Mercedes-Benz USA, LLC, et al.

CASE NO.: 25STCV24097

MOTION

FOR RELIEF FROM JURY WAIVER

MOVING PARTY: Plaintiff

David Kay

RESPONDING PARTY(S): None

REQUESTED RELIEF:

1. An
order granting relief from waiver of jury trial.

TENTATIVE RULING:

1. Motion

for relief from jury waiver is GRANTED.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

On August 15, 2025, Plaintiff David Kay (Plaintiff) filed a complaint against Defendants Mercedes-Benz USA, LLC (Mercedes) and Mercedes-Benz of Southbay (Southbay) (sometimes collectively Defendants) with six causes of action for: (1) violation of lemon law and express warranty; (2) breach of implied warranty of merchantability; (3) negligent repair; (4) misrepresentation; (5) violation of Magnuson-Moss Warranty Federal Trade Commission Improvement Act; and (6) strict products liability.

According to the complaint, Plaintiff leased a 2023 Mercedes Benz EQE350v (the Vehicle) from Defendants that developed defects during the warranty period. Specifically, Plaintiff alleges that the Vehicle had a defective battery that overheated, ignited, and destroyed property aside from the Vehicle. Plaintiff alleges that he had previously presented the Vehicle for maintenance/repairs and that Defendants did not disclose this defect.

On October 30, 2025, Plaintiff filed a request for dismissal of the third cause of action for negligent repair and the fourth cause of action for misrepresentation.

On November 4, 2025, Mercedes and Southbay (appearing as Carwell LLC dba Mercedes-Benz of Southbay) each filed an answer.

On November 7, 2025, Defendants filed a stipulation and order to strike and dismiss the third and fourth causes of action as well as punitive damages claims from the complaint which the court GRANTED.

On June 10, 2026, Plaintiff filed the instant motion for relief from jury waiver and posted jury fees. Oppositions were due on or before August 26, 2026. As of September 1, 2026, the court has not received any opposition.

LEGAL STANDARD:

A party waives trial by jury by failing to timely post the jury fee deposit. (CCP § 631(f)(5).) “The court may, in its discretion upon

just terms, allow a trial by jury although there may have been a waiver of a trial by jury.” (CCP § 6311(g).) 2

ANALYSIS:

Plaintiff contends he did not knowingly waive his right to a jury trial, failed to post jury fees due to a technical anomaly, and Defendants will not suffer prejudice because trial is more than twelve months out.

Defendants did not file an opposition.

Here, relief is warranted. First, Plaintiff explains that they tendered their jury fee deposit on October 30, 2025 but it was not processed by the clerk. (Declaration of Natan Davoodi ¶¶ 3, 4; see also Exhibit A [filing receipt].) The filing receipt shows payment of \$180.65 inclusive of the \$150 jury fee deposit. (Ibid.) The receipt also shows two documents transmitted: the request for dismissal that was ultimately filed as well as a notice of posting of jury fees which was not. (Ibid.) Second, Plaintiff did not receive a rejection and believed jury fees were posted. (Id. at ¶ 5.) Third, Plaintiff learned for the first time on June 10, 2026 at the Case Management Conference that fees were not posted on October 30, 2025. (Id. at ¶ 6.) Plaintiff immediately posted jury fees, again, which the clerk accepted. (Id. at ¶ 7, Exhibit B.) Finally, there is no undue prejudice to Defendants since trial is not set until March 27, 2028 – approximately 18 months away. This leaves plenty of time to prepare for a jury trial.

Accordingly, the court GRANTS Plaintiff's motion for relief from jury waiver.

CONCLUSION:

For the foregoing reasons, the Court decides the pending motion as follows:

1. Motion for relief from jury waiver is GRANTED.

Moving party is to give notice.

IT IS SO ORDERED.

Dated: September 9, 2026 _____ Upinder
S. Kalra

Judge
of the Superior Court